

# STATE OF NEW YORK

6438--A

2025-2026 Regular Sessions

## IN SENATE

March 13, 2025

Introduced by Sens. COMRIE, FAHY -- read twice and ordered printed, and when printed to be committed to the Committee on Consumer Protection -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general business law, in relation to promoting consumer choice by requiring manufacturers of digital electronic equipment to provide retail sellers with a one through ten repair score that will be displayed to consumers at point of sale

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. This act shall be known and may be cited as "The Electronics Repair Scores Act".

2 § 2. Subdivision 1 of section 399-nn of the general business law is amended by adding two new paragraphs (s) and (t) to read as follows:

3 (s) "Repair score" or "score" means a one through ten score calculated by the manufacturer based on the repair scoring criteria developed by the attorney general.

4 (t) "Detailed score" means the information regarding the calculation and meaning of the repair score as defined by the scoring criteria developed by the attorney general.

5 § 3. Subdivision 2 of section 399-nn of the general business law, as amended by chapter 48 of the laws of 2023, is amended to read as follows:

6 2. Requirements. (a) An original equipment manufacturer shall make available to any independent repair provider and owner of digital electronic equipment manufactured by or on behalf of or sold by such original equipment manufacturer, on fair and reasonable terms, any documentation, parts, and tools required for the diagnosis, maintenance, or repair of such digital electronic equipment and parts that are manufactured for the first time, and first sold or used in New York on or after July first, two thousand twenty-three. Such documentation, parts,

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 and tools shall be made available either directly by an original equip-  
2 ment manufacturer or via an authorized repair provider. An original  
3 equipment manufacturer who, in the regular course of business, offers to  
4 an owner the services of diagnosis, maintenance or repair of its own  
5 digital electronic equipment, and who does not have an arrangement  
6 described in paragraph (a) of subdivision one of this section with an  
7 unaffiliated individual or business, shall be considered an authorized  
8 repair provider with respect to such equipment.

9 (b) (i) For digital electronic equipment that is sold or used in this  
10 state, an original equipment manufacturer shall make available to any  
11 retail sellers and the attorney general the repair score and detailed  
12 score for such digital electronic equipment, inclusive of any updates to  
13 information.

14 (ii) Original equipment manufacturers shall print the repair score and  
15 detailed score on packaging of such digital electronic equipment, the  
16 score shall include the logo representation of the score as developed by  
17 the attorney general.

18 (iii) Original equipment manufacturers shall clearly display repair  
19 scores for such products on their website product listing pages, as well  
20 as make publicly available detailed scores to all potential purchasers  
21 on each product listing page.

22 (iv) Scoring criteria will be determined by the attorney general,  
23 which shall periodically update such criteria, and a logo representation  
24 of scores. Scoring criteria shall include, but is not limited to: the  
25 free and public availability of technical documents regarding the prod-  
26 uct; ease of disassembly of the product; availability of spare parts for  
27 the product; the price of spare parts for the product; length of soft-  
28 ware support by the manufacturer of the product; and other criteria  
29 specific to the category of the product as determined by the attorney  
30 general.

31 § 4. This act shall take effect one year after it shall have become a  
32 law.